

**SUBSTITUTE FOR
SENATE BILL NO. 1089**

A bill to amend 1961 PA 236, entitled
"Revised judicature act of 1961,"
by amending sections 880d, 8727, and 8827 (MCL 600.880d, 600.8727,
and 600.8827), section 880d as added by 1993 PA 189, section 8727
as amended by 2003 PA 95, and section 8827 as amended by 2020 PA
387, and by adding sections 1495, 1496, and 1497; and to repeal
acts and parts of acts.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 880d. A judge of probate shall order that the payment of
2 any fee required under this chapter be waived or suspended, in
3 whole or in part, ~~upon a showing by affidavit on a determination~~ of
4 indigency. ~~or inability to pay.~~ **The court shall determine indigency**
5 **in accordance with the process provided in section 1495.**



1 Sec. 1495. (1) Before the imposition of any fine, cost, or
2 other assessment under section 8727 or 8827, section 1k of chapter
3 IX of the code of criminal procedure, 1927 PA 175, MCL 769.1k, or
4 section 907 of the Michigan vehicle code, 1949 PA 300, MCL 257.907,
5 the court must conduct an assessment of indigency using a 3-pronged
6 examination. An individual must be determined to be indigent if the
7 individual meets any of the following criteria:

8 (a) The individual is represented by appointed indigent
9 defense counsel under the Michigan indigent defense commission act,
10 2013 PA 93, MCL 780.981 to 780.1003, or is enrolled in public
11 assistance, including, but not limited to, food assistance;
12 temporary assistance for needy families; Medicaid; disability
13 insurance; women, infants, and children benefits; federal
14 supplemental security income; family independence program; or
15 public housing.

16 (b) The individual's income is at or below the very low income
17 threshold for the county in which the individual resides according
18 to the United States Department of Housing and Urban Development
19 Income Eligibility Calculator.

20 (c) The individual demonstrates financial hardship under an
21 individualized judicial review test, including, but not limited to,
22 consideration of 1 or more of the following:

23 (i) Household size.

24 (ii) Income source and amount.

25 (iii) Other relevant financial circumstances, medical expenses
26 or procedures, emergencies, or other existing debts.

27 (2) For an assessment of indigency under subsection (1) (a) and
28 (b), the trial court may request documentary evidence to establish
29 that indigency criteria are met or may rely on self-attestation. An



1 individual must be advised before sentencing that the individual
2 may provide the trial court with any evidence of limited financial
3 means or hardship.

4 (3) For an assessment of indigency under subsection (1)(c),
5 self-attestation of financial circumstances shall be presumed
6 sufficient proof. The trial court may exercise its discretion to
7 require documentary proof of an individual's stated circumstance,
8 but if the trial court requires proof, the trial court must
9 document the court's reasoning for the requirement on the record.

10 (4) Current incarceration of an individual creates a
11 presumption of the individual's indigency under this section.

12 (5) Except as otherwise provided by law, the indigency
13 standards in this section must also apply when determining an
14 individual's indigency for waiver of civil filing fees and court
15 costs.

16 Sec. 1496. (1) At sentencing, the trial court shall calculate
17 the court assessments owed by the defendant. Assessments may
18 include restitution to victims, fines within statutory ranges,
19 court costs, fees authorized by law, and reimbursements including,
20 but not limited to, plaintiff costs.

21 (2) Without regard to indigency, restitution must be imposed
22 where appropriate for the offense, under all of the following:

23 (a) Section 543x of the Michigan penal code, 1931 PA 328, MCL
24 750.543x.

25 (b) Sections 1a(2), 3, and 34(6) of chapter IX of the code of
26 criminal procedure, 1927 PA 175, MCL 769.1a, 769.3, and 769.34.

27 (c) Section 3(1)(e) of chapter XI of the code of criminal
28 procedure, 1927 PA 175, MCL 771.3.

29 (d) Section 16(2) or 76(2) of the William Van Regenmorter



1 crime victim's rights act, 1985 PA 87, MCL 780.766 and 780.826.

2 (e) Any other applicable law.

3 (3) Fines and assessments imposed under section 5 of 1989 PA
4 196, MCL 780.905, for the purpose of victim payments under the
5 William Van Regenmorter crime victim's rights act, 1985 PA 87, MCL
6 780.751 to 780.834, may be imposed at the discretion of the court.
7 In determining whether a fine, an assessment imposed under section
8 5 of 1989 PA 196, MCL 780.905, or both, are appropriate
9 accountability measures, the trial court may consider the
10 individual's indigency and follow guidance provided by the state
11 court administrative office under the direction of the supreme
12 court about alternative sentencing measures that may provide more
13 appropriate accountability for indigent individuals.

14 (4) On a finding of indigency, the court shall not impose
15 costs, fees, and reimbursements including, but not limited to,
16 plaintiff costs.

17 (5) The trial court shall make a finding of indigency on the
18 record. The court shall make all findings regarding the court
19 assessments imposed or not imposed on the record.

20 Sec. 1497. (1) An individual may motion the trial court for
21 redetermination of indigency if the individual's financial
22 circumstances change after the individual has been sentenced. On a
23 request for redetermination, the trial court shall conduct a new
24 indigency assessment in accordance with the process set out in
25 section 1496. The trial court shall consider any evidence of change
26 in financial means.

27 (2) If the trial court finds that the individual is indigent
28 on redetermination under subsection (1), all of the following
29 apply:



1 (a) The trial court shall waive previously imposed court costs
2 and fees.

3 (b) The trial court may waive previously imposed fines at its
4 discretion.

5 (c) The trial court shall enter the waiver into the judicial
6 information services system, and any late fees that had been
7 imposed on that assessment must be waived.

8 (3) If the trial court waives a previously imposed assessment
9 under this section and the individual has already made payments
10 toward the assessment, the individual is not entitled to a
11 reimbursement of the payments.

12 Sec. 8727. (1) A municipal civil infraction is not a lesser
13 included offense of a criminal offense or an ordinance violation
14 that is not a civil infraction.

15 (2) If a defendant is determined to be responsible or
16 responsible "with explanation" for a municipal civil infraction,
17 the judge or district court magistrate may order the defendant to
18 pay a civil fine. ~~Beginning after the effective date of the~~
19 ~~amendatory act that added section 1495, before ordering a defendant~~
20 ~~to pay costs, assessments, damages, or expenses under this section,~~
21 ~~the judge or district court magistrate shall conduct an indigency~~
22 ~~assessment and make an indigency determination in accordance with~~
23 ~~sections 1495 to 1497. If the judge or district court magistrate~~
24 ~~finds that the defendant is indigent, the judge or district court~~
25 ~~magistrate shall not order any costs, assessments, damages, or~~
26 ~~expenses under this section. If the judge or district court~~
27 ~~magistrate finds that the defendant is not indigent, the judge or~~
28 ~~district court magistrate may order the defendant to pay costs as~~
29 ~~provided in subsection (3), the justice system assessment as~~



provided in subsection (4), and, if applicable, damages and expenses as provided in section 8733(2). In the order of judgment, the judge or district court magistrate may grant a defendant permission to pay a civil fine, costs, assessment, and damages and expenses within a specified period of time or in specified installments. Otherwise, the civil fine, costs, assessment, and damages and expenses are due immediately.

(3) If a defendant is ~~ordered to pay a civil fine~~ **found not indigent** under subsection (2), the judge or district court magistrate ~~shall~~ **may** summarily tax and determine the costs of the action, which are not limited to the costs taxable in ordinary civil actions and may include all expenses, direct and indirect, to which the plaintiff has been put in connection with the municipal civil infraction, up to the entry of judgment. Costs of not more than \$500.00 ~~shall~~ **must** be ordered. Until September 30, 2003, the amount of costs ordered ~~shall~~ **must** be not less than \$9.00. Except as otherwise provided by law, costs ~~shall be~~ **are** payable to the general fund of the plaintiff.

(4) Effective October 1, 2003, in addition to any fine or cost ordered to be paid under subsection (2), the judge or district court magistrate ~~shall~~ **may** order ~~the~~ **a** defendant **who is not indigent** to pay a justice system assessment of \$10.00. ~~Upon~~ **On** payment of the assessment, the clerk of the court shall transmit the assessment collected to the state treasurer for deposit in the justice system fund created in section 181.

(5) In addition to ordering the defendant to pay a civil fine, costs, a justice system assessment, and damages and expenses, the judge or district court magistrate may issue a writ or order under section 8302.



(6) A district court magistrate shall impose the sanctions permitted under subsections (2) and (5) only to the extent expressly authorized by the chief judge or only judge of the district court district.

(7) Each district of the district court and each municipal court may establish a schedule of civil fines, costs, and assessments to be imposed for municipal civil infractions that occur within the district or city. If a schedule is established, it ~~shall~~**must** be prominently posted and readily available for public inspection. A schedule need not include all municipal civil infractions. A schedule may exclude cases on the basis of a defendant's prior record of municipal civil infractions. **If a schedule is established, the schedule must make note of the exception for indigent individuals and include the process for determining indigency under sections 1495 to 1497.**

(8) A default in the payment of a civil fine, costs, assessment, or damages or expenses ordered under subsection (2), (3), or (4) or an installment of the fine, costs, assessment, or damages or expenses may be collected by a means authorized for the enforcement of a judgment under chapter 40 or chapter 60.

(9) If a defendant fails to comply with an order or judgment issued ~~pursuant to~~**under** this section within the time prescribed by the court, the court may proceed under section ~~8729, 8731, or~~ 8733, as applicable.

(10) A defendant who fails to answer a citation or notice to appear in court for a municipal civil infraction is guilty of a misdemeanor.

Sec. 8827. (1) A state civil infraction is not a lesser included offense of a criminal offense.



(2) If a defendant is determined to be responsible or responsible "with explanation" for a state civil infraction, the judge or district court magistrate may order the defendant to pay a civil fine as provided by law. ~~and Beginning after the effective date of the amendatory act that added section 1495, before ordering a defendant to pay costs, assessments, damages, or expenses under this section, the judge or district court magistrate shall conduct an indigency assessment and make an indigency determination in accordance with sections 1495 to 1497. If the judge or district court magistrate finds that the defendant is indigent, the judge or district court magistrate shall not order any costs, assessments, damages, or expenses under this section. If the judge or district court magistrate finds that the defendant is not indigent, the judge or district court magistrate may order the defendant to pay costs as provided in subsection (3) and the justice system assessment provided in subsection (4). In the order of judgment, the judge or district court magistrate may grant a defendant permission to pay a civil fine, costs, and assessment within a specified period of time or in specified installments. Otherwise, the civil fine, costs, and assessment are payable immediately.~~

(3) If a defendant is ~~ordered to pay a civil fine~~ **found not indigent** under subsection (2), the judge or district court magistrate ~~shall~~ **may** summarily tax and determine the costs of the action, which are not limited to the costs taxable in ordinary civil actions and may include all expenses, direct and indirect, to which the plaintiff has been put in connection with the state civil infraction, up to the entry of judgment. Costs of not more than \$500.00 ~~must~~ **may** be ordered. Until September 30, 2003, the amount of costs ordered must be not less than \$9.00. Costs in a state



1 civil infraction action in the district court must be distributed
 2 as provided in sections 8379 and 8381. Beginning October 1, 2003,
 3 costs ordered in a state civil infraction action must be
 4 distributed as provided in section 8379. Costs in a state civil
 5 infraction action in a municipal court must be paid to the county.

6 (4) Effective October 1, 2003, in addition to any fine or cost
 7 ordered to be paid under subsection (2) or (3), the judge or
 8 district court magistrate ~~shall~~**may** order ~~the~~**a** defendant **who is**
 9 **not indigent** to pay a justice system assessment of \$10.00. ~~Upon~~**On**
 10 payment of the assessment, the clerk of the court shall transmit
 11 the assessment collected to the state treasurer for deposit in the
 12 justice system fund created in section 181.

13 (5) A district court magistrate shall impose the sanctions
 14 permitted under subsection (2) only to the extent expressly
 15 authorized by the chief judge or only judge of the district court
 16 district.

17 (6) Each district of the district court and each municipal
 18 court may establish a schedule of civil fines, costs, and
 19 assessments to be imposed for state civil infractions that occur
 20 within the district or city. If a schedule is established, it must
 21 be prominently posted and readily available for public inspection.
 22 A schedule need not include all violations that are designated by
 23 law as state civil infractions. **If a schedule is established, the**
 24 **schedule must make note of the exception for indigent individuals**
 25 **and include the process for determining indigency under sections**
 26 **1495 to 1497.**

27 (7) A default in the payment of a civil fine, costs, or
 28 assessment ordered under subsection (2), (3), or (4) or an
 29 installment of the fine, costs, or assessment may be collected by a



1 means authorized for the enforcement of a judgment under chapter 40
2 or chapter 60.

3 (8) A defendant who fails to comply with an order or judgment
4 issued under this section is guilty of a misdemeanor.

5 Enacting section 1. Sections 8729 and 8829 of the revised
6 judicature act of 1961, 1961 PA 236, MCL 600.8729 and 600.8829, are
7 repealed.

8 Enacting section 2. This amendatory act does not take effect
9 unless Senate Bill No. 1090 of the 103rd Legislature is enacted
10 into law.